

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Motion to Stay Mandate — Grant Path

Filed July 2, 2026

The City of Norvale requests a short stay of the mandate under Federal Rule of Appellate Procedure 41(d) and Local Rule 41 while it completes its decision whether to petition for a writ of certiorari. Judgment entered June 18, 2026. The City files on July 2, within the ordinary rehearing period, and does not combine this request with a petition for panel or en banc rehearing. The motion is served on the Piedmont Booksellers Guild.

The City seeks a stay through August 5, 2026, unless it earlier notifies the clerk that it will not proceed. That thirty-day interval is well inside Rule 41(d)(2)'s ninety-day ceiling. If the Supreme Court extends the petition deadline or if the City files a petition before August 5, the City will provide written notice and request only the continuation authorized by the rule. Without such notice, the City accepts that the stay may be dissolved and the mandate released on the stated date.

The request is deliberately narrower than the full period potentially available. It preserves time for municipal authorization, preparation, and review of a petition while setting a definite end point. The City understands that a stay is not automatic and addresses both the substantial question and good-cause requirements below.

The Proposed Federal Question

The petition would present whether a court may sustain preliminary displacement of a facially content-neutral event rule by treating a set of suggested alternatives as constitutionally required when the municipality introduced evidence of recurring crowd concentration, vehicle circulation, emergency access, sanitation, and staffing needs. Norvale's ordinance uses a scheduled speaker's compensated status as an administrable signal that the organizer has planned a program capable of drawing a concentrated audience. It requires an advance roster, basic subject information, and a fee tied to review.

The June 18 opinion accepted the legitimacy of those interests and found no viewpoint discrimination. It nonetheless affirmed preliminary entitlement because presentation time, format, equipment, and expected audience were closer operational measures than compensation, identity, and topic. The City submits that this reasoning raises a recurring question about the evidentiary burden placed on governments defending neutral time, place, and manner regulations at the preliminary stage.

The contemplated petition would not ask the Supreme Court to approve the ordinance in every circumstance. It would ask whether the record standard and tailoring analysis improperly converted the availability of other measures into a requirement to adopt them. The answer matters to public entities that must choose administrable advance criteria before the exact attendance and site conditions of a recurring event are known. The interlocutory posture makes the legal standard, rather than final liability, the proposed subject of review.

The Remedial Question Is Independently Substantial

The panel also held that the January 23 injunction did not adequately identify the conduct restrained and that the district court failed to make an express security determination. Those are mandatory features of preliminary relief under Federal Rule of Civil Procedure 65. Yet the judgment leaves the deficient command operative until the district court supplies a replacement. The City would ask whether an appellate court may preserve such an order after finding violations of Rules 65(c) and (d), or instead must vacate it and direct prompt consideration of properly framed interim relief.

That question affects notice to municipal employees and the boundaries of contempt. The ordinance contains advance timing, logistical submissions, paid-speaker names and topics, fees, written-reason requirements, and conditioning authority. A general restraint on enforcing the enactment, coupled with broad categories of powers retained elsewhere in the order, requires officials to infer which provisions remain usable. The opinion recognizes that uncertainty but continues the command during remand.

The City does not contend that every drafting defect requires an injunction to disappear instantly. It submits that retaining an acknowledged lack of specificity, without a time certain for correction, warrants review when protected speech and public administration both depend on precise notice. The question is legal, preserved, and separable from the ultimate merits. A short mandate stay would allow the City to present it in an orderly petition rather than force implementation before the petition decision is made.

Good Cause for a Defined Stay

The June 18 judgment directs immediate district-court work once the mandate returns. That work may produce a new operative injunction, a security ruling, further submissions, and adjustments to municipal procedures for the remaining August, October, and December fairs. If the mandate issues before the City can complete its petition decision, the parties and district court may invest substantial effort in a replacement framework whose legal premise is the subject of the proposed review.

A thirty-day stay minimizes that risk without subjecting the Guild to renewed ordinance enforcement. The judgment states that existing protection remains effective until a superseding compliant order enters. Delaying the mandate therefore holds the current legal position steady: the City may continue applying neutral rules concerning physical and operational risks, but it may not restore the challenged paid-speaker burdens. The Guild's August planning remains protected, and the City will continue written, event-specific coordination.

The City is prepared to proceed promptly. Its legal office has authority to develop the petition, while final municipal approval requires review of the proposed questions and practical consequences. Counsel will report by August 5 whether a petition has been filed, whether an extension has been obtained, or whether the City will allow release. This concrete schedule distinguishes the request from an indefinite effort to delay the corrective remand. The limited duration also permits the Court to reassess good cause if circumstances materially change.

Conditions, Security, and Relief Requested

The City agrees that the stay should concern the mandate only. It does not request suspension of the January 23 injunction, alteration of the June 18 judgment, or authority to collect speaker fees while the mandate is withheld. It will preserve all communications concerning the Guild's fairs and will continue to respond to logistical updates in writing. These conditions protect the Guild against a change in the operative status quo.

Security is unnecessary because the requested relief creates no monetary recovery and does not lift the speech protection. Rule 41(d)(3) gives the Court discretion to require a bond or other security, and the City will comply with a reasonable condition if the Court identifies a compensable risk. The Guild has been informed of the intended filing. It opposes a stay, maintaining that the questions are record-specific, but has asked that any grant be short and expressly preserve existing protection.

The City respectfully asks the Court to stay issuance of the mandate through August 5, 2026. If the City gives timely notice of a Supreme Court extension or filed petition, any continuation will be governed by Rule 41(d)(2); otherwise the Court may dissolve the stay and direct release without awaiting the ninety-day maximum. Municipal Appellate Counsel submits the request on July 2, 2026, and certifies electronic service on Guild counsel.